

Department of Public Safety

Division of Fire Prevention and Control

INSPECTION AND ENFORCEMENT SUPPORT OF COLORADO WILDFIRE RESILIENCY CODES

8 CCR 1507-61

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

ARTICLE 1 – Purpose and Authority to Promulgate Rules

1.1 Purpose:

- 1.1.1 These rules establish uniform standards for a Governing Body to request inspection and enforcement support from the Division of Fire Prevention & Control (DFPC) within the Department of Public Safety, to enforce the model codes adopted by the Colorado Wildfire Resiliency Code Board, as well as provide guidance on DFPC's role when providing such support.
- 1.1.2 The purpose of these rules is to ensure that Governing Bodies with jurisdiction in an area that the Wildfire Resiliency Code Board determines to be within the Wildland-Urban Interface have the support necessary to enforce the code adopted by the Wildfire Resiliency Code Board and subsequently adopted by the Governing Body in accordance with 24-33.5-1237(2)(a), C.R.S.

1.2 Technical Rationale

- 1.2.1 The technical requirements of these rules are supported primarily by the code developed and adopted by the Wildfire Resiliency Code Board, established in 24-33.5-1236, C.R.S. These rules establish minimum requirements for DFPC's inspection and enforcement of this code, as well as the fees necessary for the Division to defray the anticipated costs of the program, as permitted in 24-33.5-1237(2)(d), C.R.S.

1.3 Statutory Authority

- 1.3.1 Section 24-33.5-1237(2)(d), C.R.S. establishes the authority and duty of the Division to conduct or oversee the necessary plan reviews, issue building permits, cause the necessary inspections to be performed, and take enforcement action pursuant to the Division's procedures set forth in Section 24-33.5-1213, C.R.S. as required when support to do so is requested by an Adopting Governing Body that does not have rules and regulations in place for the enforcement of the model codes adopted by the Wildfire Resiliency Code Board.

- 1.3.2 The Director of the Division is authorized by the provisions of Section 24-33.5-1203.5, C.R.S., to promulgate rules to carry out the duties of the Division. This rule is adopted pursuant to the authority in Section 24-33.5-1203.5, C.R.S. and is intended to be consistent with the requirements of the State Administrative Procedure Act, Section 24-4-101, et seq., C.R.S. (the APA).
- 1.3.3 The Director of the Division is authorized by the provisions of Section 24-33.5-1237(2)(d) to establish fees and charges necessary to defray the anticipated costs of the program.

ARTICLE 2 – Definitions

- 2.1 The definitions provided in 24-33.5-1202, C.R.S., shall apply to these rules. The following additional definitions shall also apply:

ACCESSORY STRUCTURE – A building or structure used to shelter or support any material, equipment, chattel or occupancy other than a habitable building

ADOPTING GOVERNING BODY – A Governing Body that has jurisdiction in an area within the wildland-urban interface and has the authority to adopt building codes or fire codes.

ADVANCED DELEGATION AGREEMENT – An official document, signed and agreed to by the Adopting Governing Body, designating the Division as the Adopting Governing Body's Wildfire Resiliency Code Official.

BOARD – The Wildfire Resiliency Code Board, established in 24-33.5-1236(2), C.R.S. **BUILDING** – Any structure intended for supporting or sheltering any occupancy.

BUILDING CODE OFFICIAL – The designated authority charged with the administration and enforcement of the Building Code adopted by the Governing Body.

BUSINESS ENTITY – Any organization or enterprise and includes, but is not limited to, a sole proprietor, an association, corporation, business trust, joint venture, limited liability company, limited liability partnership, partnership or syndicate. For the purposes of these rules the Business Entity may elect to be represented by a designated representative through a written delegation of authority.

CERTIFICATE OF COMPLETION – An official document issued by the Division, stating that materials and products meet specified standards, or that work was performed in compliance with approved construction documents and that the provisions of the code continue to be appropriately maintained.

CODES – Means the minimum codes and standards adopted by the board pursuant to Section 24-33.5-1236 (4)(b)(II), C.R.S.

COMPANY – A corporation, partnership, firm or association, two or more persons having a joint or common interest, or any other legal or commercial entity.

CONSTRUCTION – Work that is not considered as maintenance or service, and that requires a building permit.

CONSTRUCTION PERMIT – An official document issued by the Division, which authorizes the erection, alteration, demolition and/or moving of buildings and structures.

C.R.S. – Means the Colorado Revised Statutes.

DELEGATED WILDFIRE RESILIENCY CODE INSPECTOR –Wildfire Resiliency Code inspectors that have been certified by the Division to perform delegated inspection services in accordance with Article 9.2 of these rules.

DESIGNATED REPRESENTATIVE – A person designated by the Business Entity to act on their behalf through a written delegation of authority and is allowed to act in such manner as outlined in these rules.

DIRECTOR – The Director of the Division of Fire Prevention & Control. **DIVISION** – Means the Division of Fire Prevention & Control.

DWELLING UNIT – A single unit providing complete independent living facilities for one or more people, including permanent provisions for living, sleeping, eating, cooking and sanitation.

FIRE CODE OFFICIAL – The designated authority charged with the administration and enforcement of the Fire Code adopted by the Governing Body.

FIRE INTENSITY CLASSIFICATION – The level of fire intensity identified for areas where significant fuel hazards and associated dangerous fire behavior may exist, based upon vegetative fuels, topography, weather conditions, and flame length value.

GOVERNING BODY – means:

1. The city council, town council, board of trustees, or other governing body of a city, town, or city and county;
2. The board of directors of a fire protection district organized pursuant to Part 1 of Article 1 of Title 32, C.R.S.;

3. The governing body of an improvement district that provides fire protection services organized pursuant to Part 5 of Article 20 of Title 30, C.R.S.; or

4. The board of county commissioners with respect to the area within a county that is outside the corporate limits of a city or town and outside the boundaries of a fire protection district.

INDIVIDUAL (or PERSON) – Means a person, including an owner, manager, officer, employee, or individual.

INSTALLATION – The initial placement of equipment or the extension, modification or alteration of equipment after the initial placement.

MAINTENANCE – To sustain in a condition of repair that will allow performance as originally designed or intended.

ONE- OR TWO-FAMILY DWELLING – Any building that contains one or two dwelling units used, intended, or designed to be built, used, rented, leased, let or hired out to be occupied, or that are occupied for living purposes.

QUALIFIED FIRE DEPARTMENT – A fire department providing fire protection service for the buildings and structures that has Certified Fire Inspectors, as defined by Section 24- 33.5-1202(2.5), C.R.S. at the appropriate level for the task being performed.

REMOTE INSPECTION – The use of audio/visual devices and/or other technologies to perform an inspection or witness a test for the purpose of remote verification.

SPECIAL INSPECTOR – Individuals that have been certified by the Division to perform special inspection services in accordance with Article 9 of these rules.

STRUCTURE – That which is built or constructed.

WILDFIRE RESILIENCY CODE OFFICIAL – The designated authority charged with the administration and enforcement of the Wildfire Resiliency Code adopted by the Governing Body.

WILDLAND-URBAN INTERFACE – Has the same meaning as set forth by the board in its rules pursuant to Section 24-33.5-1236 (4)(b)(I), C.R.S.

ARTICLE 3 – Codes, Documents and Standards Incorporated by Reference

- 3.1 The technical requirements of these rules are supported by the code developed by the Colorado Wildfire Resiliency Code Board. These rules establish minimum requirements where an Adopting Governing Body has requested inspection and enforcement support from the Division of Fire Prevention & Control (“DFPC” or

“the Division”) within the Department of Public Safety, to enforce the model codes adopted by the Colorado Wildfire Resiliency Code Board. The appropriate portions of the adopted code will be applied as prescribed by the code. Where there are differing provisions for new and existing construction, all work permitted after July 1, 2026, must meet the requirements for new construction, as defined by the model code adopted by the Colorado Wildfire Resiliency Code Board.

- 3.2 The Division shall enforce the model codes adopted by the Colorado Wildfire Resiliency Code Board as defined in 8 CCR 1507-39 § 3.1 in the State of Colorado. Where an Adopting Governing Body has requested inspection and enforcement support from the Division to enforce the model codes adopted by the Colorado Wildfire Resiliency Code Board, local amendments will not be considered in the plan review process or during inspections.

ARTICLE 4 – Definition of Wildfire Resiliency Code Official and Delegation of Code Authority

- 4.1 The Wildfire Resiliency Code Official for buildings and structures located within a jurisdiction’s boundaries shall be the designated authority charged with the administration and enforcement of the Colorado Wildfire Resiliency Code adopted by the Governing Body.
- 4.2 Where an Adopting Governing Body does not have rules and regulations for code enforcement, the Adopting Governing Body may request assistance for code enforcement, plan review, and inspections from the Division using a form created by the Division.
- 4.3 Where an Adopting Governing Body has requested inspection and enforcement support from the Division to enforce the model codes adopted by the Colorado Wildfire Resiliency Code Board, the Adopting Governing Body remains the Wildfire Resiliency Code Official, but will delegate inspection and plan review authority to the Division.
- 4.4 Where an Adopting Governing Body has delegated inspection and plan review authority to the Division, the Division shall perform the construction plan reviews and inspections required by the adopted Colorado Wildfire Resiliency Code.
- 4.5 Where the Division serves as the inspection and plan review authority and the intent of the Code is in question, the Adopting Governing Body’s appointed Wildfire Resiliency Code Official shall render an interpretation and cause a copy of the interpretation to be sent to the owner of the permit or their representative and the Division. In such cases, the Adopting Governing Body’s appointed Wildfire Resiliency Code Official shall respond within twenty-five (25) business days. Failure of the Adopting Governing Body’s appointed Wildfire Resiliency Code Official to respond within the allotted twenty-five (25) business days will be interpreted as approval of the Division to render an opinion. If the Adopting Governing Body’s appointed Wildfire Resiliency Code Official is unwilling or

unable to render an opinion, the Adopting Governing Body may ask (within the allotted 25-days) for assistance from the Division; the submittal of a completed Advanced Delegation Agreement will be required, which will designate the Division as the Adopting Governing Body's Wildfire Resiliency Code Official.

- 4.6 Where the Division serves as the inspection and plan review authority, it shall seek approval from the Adopting Governing Body's appointed Wildfire Resiliency Code Official on requests to use alternate materials, designs, and methods or to approve materials and/or equipment. In such cases, the Adopting Governing Body's appointed Wildfire Resiliency Code Official shall respond within twenty-five (25) business days. Failure of the Adopting Governing Body's appointed Wildfire Resiliency Code Official to respond within the allotted twenty-five (25) business days will be interpreted as approval of the submitted request. If the Adopting Governing Body's appointed Wildfire Resiliency Code Official is unwilling or unable to grant approval of those requests, the Adopting Governing Body may ask (within the allotted 25-days) for assistance from the Division; the submittal of a completed Advanced Delegation Agreement will be required, which will designate the Division as the Adopting Governing Body's Wildfire Resiliency Code Official.
- 4.7 Where the Division serves as the inspection and plan review authority, it shall seek approval from the Adopting Governing Body's appointed Wildfire Resiliency Code Official on requests for ground truthing as outlined in the Code. In such cases, the Adopting Governing Body's appointed Wildfire Resiliency Code Official shall respond within twenty-five (25) business days. Failure of the Adopting Governing Body's appointed Wildfire Resiliency Code Official to respond within the allotted twenty—five (25) business days will be interpreted as approval of the submitted request. If the Adopting Governing Body's appointed Wildfire Resiliency Code Official is unwilling or unable to grant approval of those requests, the Adopting Governing Body may ask (within the allotted 25-days) for assistance from the Division; the submittal of a completed Advanced Delegation Agreement will be required, which will designate the Division as the Adopting Governing Body's Wildfire Resiliency Code Official.
- 4.8 Where the Division serves as the inspection and plan review authority, a business entity or person that is the subject of, and adversely affected by, a decision made by a Division plan reviewer or inspector or by a special inspector pursuant to these rules, may appeal such action to the Board of Appeals formed by the Adopting Governing Body and in accordance with the Adopting Governing Body's related rules. If the Adopting Governing Body is unwilling or unable to respond to requests for appeal, it may ask (within the allotted 25-days) for assistance from the Division; the submittal of a completed Advanced Delegation Agreement will be required, which will designate the Division as the Adopting Governing Body's Wildfire Resiliency Code Official.
- 4.9 Where the Division has been designated as the Wildfire Resiliency Code Official by the Adopting Governing Body through a completed Advanced Delegation

Agreement, the Division shall be charged with the administration and enforcement of the Colorado Wildfire Resiliency Code adopted in Article 3 of these rules and shall assume all duties of the Wildfire Resiliency Code Official for the duration of the designation.

- 4.10 An Adopting Governing Body may request the Division to serve as the inspection and plan review authority for only one of the two required elements listed in the adopted Colorado Wildfire Resiliency Code (Structure Hardening or Site and Area). In such cases, the Adopting Governing Body's appointed Wildfire Resiliency Code Official remains the Wildfire Resiliency Code Official, and the Adopting Governing Body cannot designate the Division as the Adopting Governing Body's Wildfire Resiliency Code Official.
- 4.11 Where the Division serves as the inspection and plan review authority or has been designated as the Wildfire Resiliency Code Official by the Adopting Governing Body through a completed Advanced Delegation Agreement, it is the responsibility of the Adopting Governing Body to make it known to all interested and affected parties that this arrangement is in place and that all plan review and inspection inquiries and applications shall be made to the Division.

ARTICLE 5 – Construction Permit Application

5.1 Preliminary Application Package Review

- 5.1.1 For any construction project, the applicant or the Division may request and hold a preliminary review meeting with the Division and the local Wildfire Resiliency Code Official, if necessary and available, at the appropriate design stage of document preparation.
- 5.1.2 If a preliminary review meeting is requested, the following items should be included in the preliminary review package:
 - A) A key plan or site plan as applicable, showing the property address(s) (or legal description), boundaries, existing buildings, proposed buildings and/or additions, parking lots, fenced areas, fire hydrants, fire equipment access, water supply, location of existing vegetation, and topography.
 - B) Sufficient documentation to illustrate and describe the design of the project, establishing the scope, relationships, forms, size and appearance of the project by means of plans, sections and elevations, typical construction details, and equipment layouts. The documents shall include outline specifications that identify major materials and systems and establish in general their quality levels.
 - C) A code plan that includes the following minimum information:

- i. Calculation of the allowable and actual square footage of the new construction.
- ii. The floor plan of all new construction, existing to remain, and remodel areas.
- iii. The proposed occupancy group(s) of the building. Include daytime use and after-hours use occupancy groups where applicable.
- iv. All exterior fire rated construction.
- v. Current site layout, including location and type of all vegetation and slopes present.
- vi. Proposed site and area modifications.

5.1.3 The Division and the local Wildfire Resiliency Code Official may request a meeting or virtual conference, in a timely manner, at any time during the preliminary review. All parties shall make reasonable accommodation for such requested meeting or virtual conference.

5.2 Construction Permit Application Submittal

5.2.1 A complete plan review application package must be submitted to the Division not less than sixty (60) days prior to beginning construction. The applicant may request from the Division an exemption to the 60-day minimum submittal period, which will be considered on a case-by-case basis.

5.2.2 The permit application requirements are available on the Division's website.

5.2.3 The construction permit application package shall be concurrently submitted to the Division and to the local Building Code Official, Fire Code Official, and Wildfire Resiliency Code Official, if applicable.

5.3 Plan Review and Permitting

5.3.1 The Division will notify the applicant upon receipt of a complete construction permit application submittal or if the construction permit application is incomplete.

5.3.2 The Wildfire Resiliency Code plan review shall be completed by a certified plans examiner within the Division.

5.3.3 The Division and/or the applicant may request a meeting or virtual conference at any time during the construction document review. The

Division shall make reasonable accommodation for such meetings or virtual conferences.

5.3.4 Upon completion of the plan review, the Division will provide the applicant and the local Wildfire Resiliency Code Official, if applicable, with a comprehensive list of corrections from the wildfire resiliency code review to be addressed prior to the issuance of a Construction Permit. This list of corrections shall not be considered as all-inclusive and may not be considered as approval of any condition in violation of applicable code. Once all corrections have been satisfactorily addressed, the Division shall issue the Construction Permit. A copy of the permit shall be made available to the local Wildfire Resiliency Code Official, if applicable.

5.4 Required Construction Permits for Building, Fire Protection, and/or Life Safety Systems Compliance

5.4.1 Permit submittals for building, fire protection, and/or life safety systems required by the local Fire and/or Building Code Officials shall be submitted for plan review and permit issuance in accordance with the requirements established by the local Building or Fire Code Official for review and approval prior to beginning construction of the building or the installation of the system or systems.

5.4.2 Minimum qualifications for fire suppression system design and installation.

- A) Any installation, modification, alteration, or repair of a fire suppression system shall be in accordance with 8 CCR 1507-11 Fire Suppression Program.
- B) Only Certified Fire Inspectors for Qualified Fire Departments, as defined by Section 24- 33.5-1202(2.5), C.R.S. who are certified at the appropriate level for the task being performed, may inspect the installation of Fire Suppression Systems in accordance with 8 CCR 1507-11 Fire Suppression Program.

5.5 Ground-Truthing Reviews

5.5.1 Where the Division has been designated as the Wildfire Resiliency Code Official by the Adopting Governing Body through a completed Advanced Delegation Agreement, a request for ground-truthing in accordance with the codes adopted in Article 3 of these rules may be made to the Division.

5.5.2 Ground-truthing shall be conducted and documented by a qualified individual who has been approved by the Division and contracted by the permit owner. Individuals requesting approval from the Division to conduct ground-truthing shall be certified as a Special Inspector by the Division and submit the following items for review:

- A) Complete application form for a Ground-Truthing Professional, which is available from the Division website.
- B) Provide a resume and sufficient proof of qualification including proof of national certifications, or description of equivalent education, training, and experience.

5.5.3 Ground-truthing documents submitted to the Division for review shall contain all the elements and in the manner outlined in the codes adopted in Article 3 of these rules.

5.5.4 Upon completion of the ground-truthing document review, the Division will issue a decision as to whether the request for modification to the Fire Intensity Classification has been approved or denied based on the information provided. The Division shall send copies of the ground-truthing decision to the permit owner or their representative.

ARTICLE 6 – Construction Inspections

6.1 Wildfire Resiliency Code Inspections

6.1.1 Construction or work for which a permit is required shall be subject to inspection by the Division, or by a Delegated Wildfire Resiliency Code Inspector or a Special Inspector contracted by the permit owner. Such construction or work shall remain accessible and exposed for inspection purposes until approved. Neither the Division nor a Special Inspector or a Delegated Wildfire Resiliency Code Inspector contracted by the permit owner shall be liable for expenses entailed in the removal or replacement of any material required to allow inspection.

6.1.2 The Division may choose to conduct Remote Inspections. When conducting a remote inspection, the Division shall follow the standards outlined in NFPA 915, Standard for Remote Inspections and Tests – 2024 Edition, First Printing: May 2023 (Copyright 2023 by National Fire Protection Association). This rule does not include later amendments or editions of the standard. The Division will maintain an electronic copy of the complete text of the adopted standard, which is available for public inspection during regular business hours. Interested parties may inspect the referenced incorporated materials and/or obtain certified copy of the adopted standard for a reasonable fee by contacting the Fire and Life Safety Section Chief at the Division, 1697 Cole Blvd, Lakewood, CO, 80401 and/or the State Depository Libraries. Copies of the adopted codes and standards are available directly from the organization originally issuing the standards: the National Fire Protection Association, reached by calling 800-344-3555 or on the web at www.nfpa.org.

6.1.3 The permit owner may hire and compensate Delegated Wildfire Resiliency Code Inspectors certified by the Division to perform inspections. A list of

certified Delegated Wildfire Resiliency Code Inspectors will be posted on the Division website. If the permit owner chooses not to hire a Delegated Wildfire Resiliency Code Inspector, the Division shall conduct the required inspections.

- A) Prior to commencement of construction on projects utilizing Delegated Wildfire Resiliency Code Inspections, the permit owner shall notify the Division of the designated Delegated Wildfire Resiliency Code Inspector for the permitted project. The notification shall be made in writing using a form provided by the Division. The Division may request a preconstruction meeting with the permit owner, the contractor hired to perform the work, and the certified Delegated Wildfire Resiliency Code Inspector.
- B) The Division shall require a sufficient number of Delegated Wildfire Resiliency Code inspection reports to be submitted by the inspector based upon the scope and cost of the project to ensure quality inspections are performed. Concurrent with the permit approval, the Division shall issue an Inspection Card specifying the applicable required inspections.
- C) The inspection card shall be on site throughout the duration of the project.
- D) Violation of Delegated Wildfire Resiliency Code Inspection Requirements: If the Division finds that inspections are not completed satisfactorily, or that all violations are not corrected, the Division shall take enforcement action pursuant to Article 10 of these rules and may not allow the use of Delegated Wildfire Resiliency Code Inspectors on the next project undertaken by the permit owner.

6.1.4 For permits issued by the Division, the final inspection shall be conducted only by the Division, after all work required by the permit is completed. Mid-construction inspections may be performed to observe progress and verify compliance as deemed necessary by the Division.

6.1.5 Delegated Wildfire Resiliency Code Inspectors shall include their printed name and state certification number in the appropriate location on the inspection report or card.

6.2 Building Code Inspections

6.2.1 Project sites shall be inspected by the Building Code Official, if applicable, to verify compliance with the locally adopted Building Code and approved construction documents.

6.2.2 Results of all inspections shall be documented in the manner required by the local Building Code Official.

6.3 Fire Code Inspections

6.3.1 Project sites shall be inspected by the Fire Code Official, if applicable, to verify compliance with the locally adopted Fire Code and approved construction documents.

6.3.2 Results of all inspections shall be documented in the manner required by the local Fire Code Official.

6.4 Inspection Request Notification to the Division

6.4.1 The Division shall be provided with notification in writing no later than noon on the Thursday in the week preceding the requested inspection. The Division will make all reasonable efforts to provide the inspection on the requested day or time, provided an inspector is available. If the inspection schedule is full, an alternate day and time will be proposed.

6.4.2 It shall be the duty of the permit holder to provide access to and means for inspections of such work that are required by this code.

6.4.3 Work will not be done beyond the point indicated in each successive inspection without first obtaining the approval from the Division. The inspector, upon notification, will perform the requested inspections.

6.5 Stop Work Orders Issued by the Division

6.5.1 Where the Division has been designated as the Wildfire Resiliency Code Official by the Adopting Governing Body through a completed Advanced Delegation Agreement, if the Division finds any work regulated by these rules being performed in a manner either contrary to the provisions of these rules or dangerous or unsafe, the Division is authorized to issue a stop work order.

6.5.2 The stop work order will be in writing and will be given to the Business Entity, the Designated Representative, or the person doing the work. Upon issuance of a stop work order, the cited work must immediately cease. The stop work order will state the reason for the order and the conditions under which the cited work will be permitted to resume.

6.5.3 Any person who continues any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, will be subject to penalties as prescribed by these rules.

ARTICLE 7 – Certificate of Completion

- 7.1 The building or structure shall not be occupied until a Certificate of Completion has been issued by the Division.
- 7.2 Certificates of Completion will be issued based on the codes in effect at the time of permitting. No Certificate of Completion will be issued until compliance with the applicable codes and standards, including those adopted by the local Building and/or Fire Code Official, has been demonstrated through record review of local Building and/or Fire Code Official's documents of inspection and certification, Division inspection and certification, or other appropriate documentation, showing the building to be in conformance with applicable codes and standards. A copy of the Certificate of Completion shall be made available to the local Wildfire Resiliency Code Official, if applicable.
- 7.3 For site and area design work that has not been completed at the time of the final inspection, the Division may issue a Certificate of Completion if a completed, signed, and agreed to affidavit of intent to meet the site and area design requirements have been submitted by the permit owner.

ARTICLE 8 – Maintenance And Complaint Inspections and Maintenance

- 8.1 Maintenance and Complaint Inspections
 - 8.1.1 Nothing in these rules prohibits the fire department providing fire protection services from conducting routine assessments of buildings and structures or prevents the department from correcting violations that pose an immediate threat to life safety. Additionally, nothing in these rules prohibits the fire department from seeking enforcement action in a court of competent jurisdiction.
 - 8.1.2 A fire department providing fire protection service for buildings and structures in their jurisdiction that chooses to perform Fire Code inspections may refer notices of deficiencies related to the adopted Colorado Wildfire Resiliency Code to the Division for evaluation and enforcement, where the Division has been designated as the Wildfire Resiliency Code Official by the Adopting Governing Body through a completed Advanced Delegation Agreement.
 - A) Notices of deficiencies and requests for evaluation and enforcement shall be submitted in writing, using the method and form designated by the Division.
- 8.2 Maintenance
 - 8.2.1 The owner or the owner's authorized agent shall be responsible for the maintenance of buildings, structures, landscape materials and vegetation. Buildings, structures, landscape materials, vegetation, defensible space or

other devices or safeguards required by the adopted Colorado Wildfire Resiliency Code shall be maintained in conformance to the code edition under which they are installed.

ARTICLE 9 – Special Inspectors and Delegated Wildfire Resiliency Code Inspectors

9.1 Inspectors shall be certified in accordance with the provisions of 8 CCR 1507 – 101 BUILDING AND FIRE CODE ADOPTION AND CERTIFICATION OF INSPECTORS FOR FIRE & LIFE SAFETY PROGRAMS ADMINISTERED BY THE STATE OF COLORADO.

9.2 Special Inspectors

9.2.1 Duties of Special Inspectors

- A) Special Inspectors, contracted by the permit owner, shall conduct the required special inspections, and require corrections or modifications as necessary to ensure that a building or structure is constructed in conformity with the code adopted in Article 3 of these rules.
- B) Special Inspectors, contracted by the permit owner, shall enforce only the code adopted in Article 3 of these rules.
- C) The permit owner shall only use Special Inspectors that are certified by the Division to perform the required Special Inspections on projects permitted under these rules.
- D) Special Inspectors, contracted by the permit owner, shall provide copies of their inspection report to the Division.
- E) Special Inspectors contracted by the permit owner shall attest that special inspections are complete and all violations are corrected before the Division issues a Certificate of Completion. The certified Special Inspector shall retain inspection records for two years after the Certificate of Completion is issued.

9.2.2 Special Inspector Application

- A) Applicants shall complete the following items for application as a Certified Special Inspector.
 - i. Complete the application form for Special Inspector.
 - ii. Provide documentation for qualifications in conformance with the adopted code.

- iii. Pay the required certification fee as specified for Inspectors in 8 CCR 1507-101.

9.3 Delegated Wildfire Resiliency Code Inspectors

9.3.1 Duties of Delegated Wildfire Resiliency Code Inspectors

- A) Delegated Wildfire Resiliency Code Inspectors, contracted by the permit owner, shall conduct the required inspections, and require corrections or modifications as necessary to ensure that a building and/or site and area are constructed in conformity with the code adopted in Article 3 of these rules.
- B) Delegated Wildfire Resiliency Code Inspectors, contracted by the permit owner, shall enforce only the codes adopted in Article 3 of these rules.
- C) The permit owner shall only use inspectors that are certified by the Division to work on Wildfire Resiliency Code projects.
- D) Delegated Wildfire Resiliency Inspectors contracted by the permit owner shall cause copies of their inspection reports to be sent to the Division.
- E) Delegated Wildfire Resiliency Code Inspectors contracted by the permit owner shall attest that inspections are complete and all violations are corrected before the Division issues a Certificate of Completion. The Delegated Wildfire Resiliency Code Inspectors shall retain inspection records for two years after the Certificate of Completion is issued.

9.3.2 Applicants shall complete the following items for application as a Delegated Wildfire Resiliency Code Inspector:

- A) Complete the application form for Delegated Wildfire Resiliency Code Inspector certification, which is available from the Division website. For the purposes of this rule, a Delegated Wildfire Resiliency Code Inspector shall follow the same process and pay the same fees as a Delegated Building Inspector as outlined in 8 CCR 1507-101 BUILDING AND FIRE CODE ADOPTION AND CERTIFICATION OF INSPECTORS FOR FIRE & LIFE SAFETY PROGRAMS ADMINISTERED BY THE STATE OF COLORADO.
- B) Provide a resume and sufficient proof of qualification including proof of national certifications, or description of equivalent education, training and experience.
- C) Pay the required certification fee.

ARTICLE 10 – Enforcement

- 10.1 The Director of the Division shall enforce the requirements of the codes adopted in Article 3 of these rules in accordance with the provisions of Section 24-33.5-1213, C.R.S.
- 10.1.1 The Director may issue a notice of violation to a person who is believed to have violated the provisions of the Codes as determined by an inspection in accordance with the procedures described in Section 24-33.5-1213, C.R.S.
- 10.1.2 An enforcement order issued pursuant to Section 24-33.5-1213, C.R.S. may impose a civil penalty, depending upon the severity of the alleged violation, not to exceed five hundred dollars per violation, for each day of violation; except that the Director may impose a civil penalty not to exceed one thousand dollars per violation, for each day of violation, that results in, or may reasonably be expected to result in, serious bodily injury.
- 10.1.3 The Director may file suit in the district court in the judicial district in which a violation is alleged to have occurred to judicially enforce an enforcement order issued pursuant to Section 24-33.5-1213, C.R.S.
- 10.2 A person who is the subject of, and is adversely affected by, a notice of violation or enforcement order issued pursuant to this Article 10 may appeal such action to the Executive Director of the Department of Public Safety. The Executive Director shall hold a hearing to review such notice or order and take final action in accordance with Title 24, Article 4, C.R.S. Final agency action shall be subject to judicial review pursuant to Title 14, Article 4, C.R.S.
- 10.3 It is not the intent of this Article 10 to remove, limit, or modify enforcement authority of the fire department providing fire protection service for buildings or structures within their jurisdiction.

ARTICLE 11 – Appeals

- 11.1 Where the Division has been designated as the Wildfire Resiliency Code Official by the Adopting Governing Body through a completed Advanced Delegation Agreement, a business entity or person that is the subject of, and adversely affected by, a decision or interpretation made by a Division plan reviewer or inspector or by a special inspector pursuant to these rules, may appeal such action to the Board of Appeals formed by Section 24-33.5-1213.7, C.R.S.
- 11.2 The affected party shall first contest the preliminary code interpretation to the Division. After consideration, the Division will issue its final code determination on the matter.

- 11.3 If the affected party still disagrees with a decision made by the Division, it may appeal to the Director. After consideration, the Director or their designee shall issue the Division's final written decision on the matter.
- 11.4 If the affected party still disagrees, it may appeal to the Board of Appeals. The appeal shall be filed within thirty days after the date of the final written decision by the Director or their designee. Upon receipt of an appeal, the Division shall notify the Chair of the Board of Appeals and schedule a hearing no more than fifteen days after the date the appeal was filed.
- 11.5 An application for appeal shall be based on a claim that the true intent of this code or the standards legally adopted therein have been incorrectly interpreted, the provisions of this code do not fully apply, or an equally good or better form of construction is proposed. The Board of Appeals shall not waive any requirements of the codes or standards; however, the Board of Appeals may recommend alternative materials or methods as provided in the codes or standards. The final written decision of the Board of Appeals is final agency action for purposes of Section 24-4-106, C.R.S.

ARTICLE 12 – Fees and Charges

- 12.1 Inspector Certification Fees: The Division shall charge the fees for inspector certifications as specified in 8 CCR 1507-101 BUILDING AND FIRE CODE ADOPTION AND CERTIFICATION OF INSPECTORS FOR FIRE & LIFE SAFETY PROGRAMS ADMINISTERED BY THE STATE OF COLORADO.
- 12.2 Plan review, construction permit, and inspection fees
 - 12.2.1 The Division shall charge a fee for plan review and issuance of a permit to cover the actual, reasonable, and necessary expenses of the Division for those expenses related to the Wildfire Resiliency Code Enforcement Program.
 - 12.2.2 The plan review, construction permit, and inspection fees for new construction. Including the construction of an addition to an existing structure, are as follows:
 - A) The Fee for Wildfire Resiliency Code reviews performed by the Division for new one- and two-family dwellings or any addition thereto will be subject to a base fee of \$300.00.
 - B) The Fee for Wildfire Resiliency Code reviews performed by the Division for new accessory structures equal to or less than 2,500 square feet in size, will be subject to a base fee of \$150.00.
 - C) The Fee for Wildfire Resiliency Code reviews performed by the Division for any new building or structure other than a one- and two-family dwelling or an addition thereto or an accessory structure

greater than 2,500 square feet in size will be subject to a base fee of \$1000.00.

12.2.3 The plan review, construction permit, and inspection fees for modifications to existing structures, not including additions, are as follows:

- A) The Fee for Wildfire Resiliency Code reviews performed by the Division for modifications to existing one- and two-family dwellings will be subject to a base fee of \$150.00.
- B) The Fee for Wildfire Resiliency Code reviews performed by the Division for modifications to any existing building or structure other than a one- and two-family dwelling, will be subject to a base fee of \$500.00.

12.2.4 Where the Division serves as the inspection and plan review authority for only one of the two required elements listed in the adopted Colorado Wildfire Resiliency Code (Structure Hardening or Site and Area), one-half of the fees listed above shall be applied.

12.2.5 In addition to the base fees listed above, ground-truthing document reviews performed by the Division will be subject to a fee of \$100.00.

12.2.6 No less than half of the required fees must be submitted prior to commencement of plan review and the remaining fees must be submitted prior to permit issuance. Inspections, if applicable, shall not be performed until the remainder of the required fees have been paid.

12.2.7 Additional Inspection fees: The Division may assess a \$100 reinspection fee for each inspection required to reinspect a building or element of a building that failed to pass initial inspection of that building or element.

12.2.8 Off-hours inspections: The Division may assess an additional off-hours inspection fee of \$100 for inspections requested outside of normal business hours.

- A) Normal inspection hours are Monday through Friday between 7:00 am and 5:00 pm.
- B) Off-hours inspections are scheduled on an “as-available” basis. The Division is not obliged to provide inspections outside of normal operating hours if an inspector is not available.

12.2.9 Work commenced before a permit is issued shall be subject to a fee in addition to the required permit fee.

12.2.10 Fees are charged per building or structure.

- 12.2.11 Failure to pay for inspections performed shall result in a notice of violation and enforcement in accordance with Article 10 of these rules.
- 12.2.12 Division fees do not include costs associated with inspections conducted by local building and/or fire departments or by Special or Delegated Wildfire Resiliency Code Inspectors.
- 12.3 The Director of the Division will review the fund balance periodically and may reduce or increase the fee amounts, if necessary, pursuant to Section 24-75-402 (3) and 24-75-402 (4), C.R.S.
- 12.4 Fees may be waived or modified when appropriate at the discretion of the Director or their designee. Requests for waivers or modification shall be in writing.

ARTICLE 13 – Inquiries

- 13.1 Questions, clarification, or interpretation of these Rules should be addressed in writing to: Fire & Life Safety Section Chief, Colorado Division of Fire Prevention and Control, 1697 Cole Blvd., Suite 200, Lakewood, CO 80401. Telephone number: (303) 239-4100.

Editor's Notes

History

Entire rule eff. 07/15/2026.